

23CMCV01412 23CMCV01412

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-29

Motion: DEFENDANTS AIR DISTRIBUTION USA, INC.'S MOTION TO COMPEL FURTHER DISCOVERY RESPONSES

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Case Number: 23CMCV01412 Hearing Date: September 29, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ROSE ML INC.,

Plaintiff,

vs.

AIR

DISTRIBUTION USA INC, et al.,

Defendants.

AIR

DISTRIBUTION USA INC.,

Cross-Complainant,

vs.

ROSE ML

INC., et al.,

Cross-Defendants.

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CASE NO: 23CMCV01412

[TENTATIVE]

ORDER RE: DEFENDANTS AIR DISTRIBUTION USA, INC.'S MOTION TO COMPEL FURTHER
DISCOVERY RESPONSES

Dept.

A

DATE:

September 29, 2026

TIME:

8:30 A.M.

Complaint:

08/30/2023

FAC:

04/20/2026

Cross-Complaint:

09/19/2023

SACC:

04/08/2026

Trial:

11/09/2026

MOVING

PARTY: Defendant Air

Distribution USA, Inc.

RESPONDING

PARTY: Plaintiff Shisha Aroma, Inc.

1.

Background

This

is an action arising from an alleged breach of contract. Plaintiffs Rose ML, Inc. and Shisha Aroma, Inc. (collectively, "Plaintiffs") allege that defendants Air Distribution USA, Inc. and Robert Maneson (collectively, "Defendants") entered into an agreement with Plaintiffs not to sell certain products except to certain persons or under certain circumstances, and that Defendants breached this agreement.

Defendant

Air Distribution USA, Inc. ("Air Distribution") filed a cross-complaint against Rose ML, Inc. and cross-defendants Sal Haddadin; Alfa Distribution, Inc. ("Alfa"); and Corona Wholesale, Inc. ("Corona"). In the cross-complaint, Air Distribution alleges that Alfa and Corona are alter egos of Haddadin. Air Distribution alleges that Rose ML, Inc. and Haddadin failed to pay for \$3,158,685.65 worth of tobacco products delivered to them by Air Distribution.

2.

Discussion

Air Distribution moves to

compel further responses from Plaintiff Shisha Aroma, Inc. ("Shisha Aroma") to Form Interrogatories, Set One; Special Interrogatories, Set Two; and Requests for Production of Documents, Set Two. Air Distribution contends that Shisha Aroma's responses were evasive and incomplete, or contained meritless objections. In opposition, Shisha Aroma contends that the motion is stayed by the anti-SLAPP discovery stay in this action and that pursuit of damages discovery in advance of expert witness discovery is improper.

Any party may obtain any

discovery of information, documents, land, property or electronically stored information so long as the discoverable matter is not privileged, is relevant to the subject matter and can lead one to admissible evidence. (Code Civ. Proc., § 2017.010.)

“On receipt of a response

to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... [a] statement of compliance with the demand is incomplete[;] ... [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] ... [a]n objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

When responses to

interrogatories are deficient, the propounding party may file a motion to compel further responses. (Code Civ. Proc. § 2030.300.) A motion to compel further responses to interrogatories may be brought when an answer to a particular interrogatory is evasive or incomplete, or an objection is without merit or too general. (Ibid.)

On

May 14, 2026, Defendants filed a special motion to strike a portion of the FAC under Code of Civil Procedure § 425.16. As such, pursuant to Code of Civil Procedure § 425.16, subd. (g), discovery was stayed as to Plaintiffs' FAC as of May 14, 2026. On August 10, 2026, Shisha Aroma, Inc. filed opposition to this motion. The court heard Defendants' anti-SLAPP motion to strike on September 8, 2026. On September 11, 2026, the court granted the special motion to strike in part and continued the hearing on this motion to provide responding party with additional opportunity to oppose the motion since the opposition was originally due and was filed during the pendency of the stay on discovery. Responding party filed no additional opposition to the motion.

After

consideration of the parties' arguments, the court finds that Shisha Aroma's objections to Form Interrogatories, Set One, No. 9.2; Special Interrogatories, Set Two, Nos. 43, 44, 46, 47, 50, 51, 53, 54, 55, 56, 57, and 72; and Requests for Production, Set Two, Nos. 46 and 64 are without merit. With respect to Request for Production 64, the objection that the request seeks net worth information protected from discovery by Civil Code section 3295 is without merit. Section 3295 does not prohibit a defendant from conducting pretrial discovery from plaintiff as to plaintiff's claim for damages, in this case responding party's claim for lost profit damages. The documents sought are relevant to responding party's claims that it suffered lost profit damages, as indicated in its response to Form Interrogatory 9.1(a).

The

court will therefore grant Air Distribution's motion to compel further discovery responses.

Air Distribution requests

monetary sanctions of \$8,025 against Shisha Aroma, based on attorney Kina J. Wong's hourly rate of \$450 across six hours spent preparing the motion and three hours anticipated to be spent reviewing the opposition, preparing the reply, and attending the hearing, as well as attorney Colin R. Higgins' hourly rate of \$795 across three hours spent preparing the motion and two hours anticipated to be spent reviewing the opposition and preparing the reply.

"The court shall impose a

monetary sanction under Chapter 7 against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response..., unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. §§ 2030.300, subd. (d); 2031.310, subd. (h).)

Monetary sanctions shall

constitute reasonable expenses, including attorney's fees incurred as a result of the sanctionable conduct. (Code Civ. Proc., § 2023.030, subd. (a).) Monetary sanctions are authorized in connection with a motion to compel further responses to interrogatories, as well as to compel further responses to requests for production. (See Code of Civ. Proc. §§ 2030.300, 2031.310.)

The court finds the

requested hourly rates reasonable. The court finds the requested hours unreasonable and will reduce sanctions accordingly. The court will therefore grant monetary sanctions against Shisha Aroma in the total amount of \$4,050.

3.

Conclusion

Based on the foregoing, the court GRANTS

Defendant Air Distribution USA, Inc.'s motion to compel Plaintiff Shisha Aroma, Inc. to provide further responses to Form Interrogatories, Set One, No. 9.2; Special Interrogatories, Set Two, Nos. 43, 44, 46, 47, 50, 51, 53, 54, 55, 56, 57, and 72; and Requests for Production, Set Two, Nos. 46 and 64. Responsive documents shall be provided not later than October 9, 2026.

The court GRANTS Air Distribution's request for monetary sanctions against Cross-Shisha Aroma in the total amount of \$4,050, to be paid not later than October 28, 2026.

IT IS SO ORDERED.

DATED: September 29, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court